NATIONAL COMPANY LAW TRIBUNAL
GUWAHATI BENCH
GUWAHATI

ORDER SHEET OF THE HEARING ON 30th NOVEMBER, 2023, 10:30 A.M.

CP (CAA)/14/GB/2022

Present: 1. Hon'ble Member (Judicial), Shri H.V. Subba Rao
2. Hon'ble Member (Technical), Shri Satya Ranjan Prasad

Name of the Company	Blueberry Tradecom Pvt Ltd. & Five Others (Transferor Companies) And Sagar Roofings Pvt. Ltd (Transferee Company)
Under Section	U/s 230 to 232 of Companies Act, 2013

For Petitioner (s) : Mr. N. Gurumurthy, FCA.

For Respondent (s) :

ORDER

Order Pronounced through VC *vide* separate sheets.

Sd/-
Satya Ranjan Prasad
Member (Technical)

Sd/-
H.V. Subba Rao
Member (Judicial)

NATIONAL COMPANY LAW TRIBUNAL
GUWAHATI BENCH
GUWAHATI

C.P (CAA) NO 14 /GB/2022
Connected With
C.A. (CAA) No.03 /GB/2022

In the matter of:

A petition for sanction of Scheme of Arrangement made under Sections 230 to 232 and other applicable provisions of the Companies Act, 2013 read with the Companies (Compromises, Arrangements and Amalgamations Rules), 2016;

-And-

In the matter of:

SAGAR ROOFINGS PRIVATE LIMITED, a company incorporated under the provisions of The Companies Act, 1956 (CIN:U20100AS1999 PTC005904)and having its Registered Office at Sikaria Complex, SJ Road, Athgaon Guwahati-781001, in the State of Assam;

… Transferee Company

-And-

In the matter of:

BLUEBERRY TRADECOM PRIVATE LIMITED, a company incorporated under the provisions of the Companies Act, 1956 (CIN:U52390AS2010PTC017625) and having its Registered Office at ROOM NO.206, Sikaria Complex, Old Building, Sati Jaymati Road Athgaon, Ward No-19 Guwahati Kamrup-781001, in the State of Assam;

… Transferor Company No 1

-And-

In the matter of:

EMBARK VANIJYA PRIVATE LIMITED, a company incorporated under the provisions of the Companies Act, 1956 (CIN:U52100AS2010PTC017628) and having its Registered Office at Room No.206, Sikaria Complex, Old Building, Sati Jaymati Road Athgaon, Ward No-19 Guwahati Kamrup-781001, in the State of Assam;

… Transferor Company No 2

-And-

In the matter of:

GLOSSY VANIJYA PRIVATE LIMITED, a company incorporated under the provisions of the Companies Act, 1956 (CIN: U51909AS2010PTC017645) and having its Registered Office at Room No. 201, 2nd Floor, Block-B, New Building, Sikaria Complex, Sati Jaymati Road, Athgaon, Guwahati Kamrup-781001, in the State of Assam;

… **Transferor Company No 3**

-And-

In the matter of:

HEMINGWAY APARTMENTS PRIVATE LIMITED, a company incorporated under the provisions of the Companies Act, 1956 (CIN:U45201AS1997PTC017646) and having its Registered Office at Room No.206, 2nd Floor, Old Building, Sikaria Complex, Sati Jaymati Road, Athgaon, Ward No-19 Guwahati Kamrup-781001, in the State of Assam;

… Transferor Company No 4

-And-

In the matter of:

JALDHAM VINTRADE PRIVATE LIMITED, a company incorporated under the provisions of The Companies Act, 1956 (CIN:U51909AS2010 PTC017626)and having its Registered Office at Room No.201, New Building, Block-B, 2nd Floor, Sikaria Complex, Sati Jaymati Road, Athgaon, Guwahati Kamrup-781001, in the State of Assam;

… Transferor Company No 5

-And-

In the matter of:

SIDHIDATA MARKETING PRIVATE LIMITED, a company incorporated under the provisions of the Companies Act, 1956 (CIN:U51909AS2010PTC 017627) and having its Registered Office at Room No.201, New Building, Block-B, 2nd Floor, Sikaria Complex, Sati Jaymati Road, Athgaon, Guwahati Kamrup-781001, in the State of Assam.

… Transferor Company No 6

NATIONAL COMPANY LAW TRIBUNAL
GUWAHATI BENCH
GUWAHATI

C.P (CAA) NO 14 /GB/2022
Connected With
C.A. (CAA) No.03/GB/2022

Coram:

Shri H. V. Subba Rao	:	Member (Judicial)
Shri Satya Ranjan Prasad	:	Member (Technical)

Appearances (through video conferencing):

For the Petitioners	:	Shri. N. Gurumurthy, FCA Ms. Aisha Amin, Advocate
For the Regional Director	:	Mr. A. Arvind, RD, NER

Order reserved on: 08.11.2023
Order pronounced on: 30.11.2023

ORDER

1. This Present Company Petition has been filed jointly by the Petitioners under Sections 230-232 of the Companies Act, 2013 seeking sanction of this Tribunal to a Scheme of Amalgamation of Blueberry Tradecom Private Limited, Embark Vanijya Private Limited, Glossy Vanijya Private Limited, Hemingway Apartments Private Limited, Jaldham Vintrade Private Limited and Sidhidata Marketing Private Limited (all Transferor Companies) with Sagar Roofings Private Limited – Transferee Company whereby and where under the entire undertakings of the Transferor Companies as a going concern together with all the assets and liabilities relating thereto is proposed to be transferred to and be vested in the Transferee Company on the terms and conditions with effect from the Appointed Date being 01st April,2021 as mentioned in the Scheme. A copy of the said Scheme of Amalgamation has been annexed to the Company Petition.

2. The Petition has now come up for final hearing. Ld. Counsel for the Petitioners submits that that the registered offices of the Transferor Companies and Transferee Company are situated in the State of Assam, within the jurisdiction of this Bench.

3. It is submitted that rationale for the Scheme of amalgamation as said in the Scheme is as follows:

   3.1 The Transferee Company is engaged in trading of Iron & Steel products i.e., CR Sheets, HR Sheets, MS Angle, MS Plate etc. and has also made deployment of its funds in other investable instruments. Apart from pursuing its main object, all the Transferor Companies have made deployment of their funds in other investable instruments. The business of the Transferor Companies and the Transferee Company can be combined/adjusted and carried forward conveniently with combined strength;

   3.2 The amalgamation will enable the Transferee Company to consolidate its line of business by restructuring and re-organizing its business activities and Capital Structure;

   3.3 The amalgamation will enable the amalgamated company to broad base their business activities under the roof of the Transferee Company;

   3.4 The amalgamation will result in economy of scale including reduction in overhead expenses relating to management and administration in better and more productive utilization of various resources;

   3.5 The business of the Companies can be conveniently and advantageously combined together in general business of the Company concerned and will be carried on more economically and profitably under the said Scheme;

   3.6 The said Scheme of Amalgamation will enable the establishment of a larger company with larger resources and a larger capital base enabling further development of the business of the company concerned. The said scheme will

also enable the undertakings and business of the said applicant company to obtain greater facilities possessed and enjoyed by one large company compared with a number of small Companies for raising capital, securing and conducting trade on favorable terms and other benefits;

3.7 The said scheme will contribute in furthering and fulfilling the objects of the Company concerned and in the growth and development of these businesses;

3.8 The said scheme will strengthen and consolidate the position of the amalgamated company and will enable the amalgamated company to increase its profitability;

3.9 The said scheme will enable the undertakings concerned to pool their resources and to expand their activities;

3.10 The said scheme will enable the Companies concerned to rationalize and streamline their management, business and finances and to eliminate duplication of work to their common advantages;

3.11 The said scheme will have beneficial results for the Companies concerned, their shareholders, employees and all concerned.

4. *Vide* order dated 28.07.2022 passed in Company Application CA (CAA) No.3/GB/2022, directions were issued by this Tribunal, wherein the meetings of Equity Shareholders of both the Transferor Companies and Transferee Company, Unsecured Creditors of Transferee Company, Secured Creditors of Transferor Companies, Unsecured Creditors of Transferor Company No. 3 & 4 and Unsecured Creditors of the Transferor Company No. 1, 2, 5 and 6 were dispensed. Further by the said order directions were given for the convening/ manner/place and date of the meeting of the Secured Creditors of the Transferee Company and also appointed the Director of the Transferee Company as the Chairperson for the said meeting.

5. It is submitted that the meeting as directed by this Tribunal *vide* order dated 28.07.2022 in Company Application No. CA (CAA) No. 3/GB/2022 was convened and held under

the supervision of the said Chairperson on the date time and venue mentioned in the order and the said Chairperson has submitted her report duly affirmed by her affidavit to this Tribunal on 4th October, 2022. The minutes of said meeting are annexed to the Report filed by the Chairperson.

6. It is submitted that the Petitioner Companies have complied with all directions passed by this Tribunal in Company Application No. CA (CAA) No. 3/GB/2022 and have filed the present Company Petition for seeking sanction and confirmation of the Scheme.

7. It is submitted by the Petitioners that *vide* order dated 20.01.2023, the Company Petition C.P (CAA) NO 14/GB/2022 (2nd Motion) was admitted with directions for publication of notice of hearing to be advertised in "The Assam Tribune" in English and "Amar Asom" in vernacular language. The Petitioners were also directed to serve notice upon following Authorities, namely, Income Tax Authorities Concerned (indicating the respective PAN Nos.), ROC NER Guwahati, Official Liquidator and Regional Director as well as other Sectorial Regulators or authorities. The same have been complied with and affidavit of compliance has been filed.

8. It is submitted by the Petitioners that:

   8.1 None of the Companies are involved in the Scheme are NBFC Companies.

   8.2 The Board of Directors of the Petitioner Companies have at their meeting held on 10th February,2022 have passed resolution approving the Scheme and all of which are collectively annexed to the Company Petition and marked – Annexure – T in VOL III at page 505 to 515.

   8.3 The Statutory Auditors of the Petitioner No 1, Petitioner No 2, Petitioner No 4 have all by their certificate dated 25-03-2022, Petitioner No 5 and Petitioner No 6 have all by their certificate dated 17-01-2022, Petitioner No 3 by their certificate dated 15-01-2022 and Petitioner No 7 by their certificate dated 10-02-2022 have confirmed that the accounting treatment mentioned in the Scheme is in

conformity with Accounting Standard prescribed under Section 133 of the Companies Act, 2013 and Rules made there under. Copy of the said certificates are all collectively annexed to the Company Petition being – Annexure – U in VOL III at Page No 516 to 529.

8.4 The list of Equity shareholders of the Petitioner Companies are all collectively annexed to the Company Petition and marked – Annexure – P in VOL III at page 446 TO 452.

8.5 The list of Creditors of the Petitioner Companies are all collectively annexed to the Company Petition and marked – Annexure – Q in VOL III at page 453 TO 466.

8.6 The Valuation Report dated 21st October, 2022 prepared by Mukesh Banka, IBBI Registered Valuer recommending the Swap Ratio for shares to be allotted by Transferee Company to the Shareholders of the Transferor Companies are all collectively annexed to the Company Petition and marked – Annexure – S in VOL III at page 484 to 504.

8.7 None of the Directors of the Petitioner Company has any material interest in the said Scheme of Amalgamation except as shareholders in general, the extent of which will appear from the Register of Directors and Shareholders maintained by the Company.

8.8 The assets of the Petitioner Companies are sufficient to meet all its liabilities and the said Scheme of Amalgamation will not adversely affect in any manner whatsoever.

8.9 There are no proceedings pending under Section 210, 213 to 216, 219, 220, 222 to 225 of the Companies Act, 2013 against the petitioner companies.

9. The Regional Director, North Eastern Region, Ministry of Corporate Affairs have filed its report, wherein he has made the following observation in Paragraph 2:

PARA 2 (A)

That the Registrar of Companies, Guwahati in his report dated 15.03.2023 has stated that no Complaint / Inspection/ Investigation/ Technical Scrutiny is pending / being carried out against the petitioner companies. A copy of the suit report is attached as Annexure-1.

Observations regarding M/s Blueberry Tradecom Private Limited (Transferor Company No. 01): As per Section 90(4) of the Companies Act, 2013-Every company shall file return of significant beneficial owners of the company and changes therein with the Registrar containing names, addresses and other details as may be prescribed within such time, in such form (E- form BEN-2) and manner as may be - prescribed. That the subject company having 2 shareholders namely M/s Hemingway Apartments Pvt Ltd and M/s Embark Vanijya Pvt Ltd, holding 45% shares each respectively in the subject company, does not file E-form BEN-2 as required under the provisions of Companies Act, 2013. Therefore, the Transferor Company No. 01, has violated the provisions of Section 90(4) of the Companies Act, 2013.

Reply by the Petitioners: The Deponent duly authorized by the Petitioners hereby undertakes that the Petitioner Company namely - Blueberry Tradecom Private Limited (Transferor Company No. 01) will file E form BEN 2 by paying the requisite fees prior to the sanction of the Scheme.

Observations regarding M/s Embark Vanijya Private Limited (Transferor Company No. 02): As per Section 90(4) of the Companies Act, 2013-Every company shall file return of significant beneficial owners of the company and changes therein with the Registrar containing names, addresses and other details as may be prescribed such time,

in such form (form- BEN-2) and manner as may be prescribed. That the subject company having 2 shareholders namely M/s Hemingway Apartments Pvt Ltd and M/s Blueberry Tradecom Pvt Ltd, holding 45% shares each respectively in the subject company, does not file E-form BEN 2 as require under the provisions of Companies Act, 2013. Therefore, the Transferor Company No. 02, has violated the provisions of Section 90(4) of the Companies Act, 2013.

Reply by the Petitioners: The Deponent duly authorized by the Petitioners hereby undertakes that the Petitioner Company namely - Embark Vanijya Private Limited (Transferor Company No. 02) will file E form BEN 2 by paying the requisite fees prior to the sanction of the Scheme.

Observations regarding M/s Embark Vanijya Private Limited (Transferor Company No. 02): As per Section 137(1) of the Companies Act, 2013 A copy of the financial statements, including consolidated financial statement, if any, along with all the documents which are required to be or attached to such financial statements under this Act, duly adopted at the annual general meeting of the company, shall be filed with the Registrar (in E-form AOC 4-CFS) within thirty days of the date of annual general meeting in such manner, with such fees or additional fees as may be prescribed. That the subject company having 2 associates company namely M/s Hemingway Apartments Pvt Ltd and M/s Blueberry Tradecom Pvt Ltd. does not file E-form AOC 4-CFS for the FY 2021-22 with the MCA portal as required under the provisions of Section 137(1) of the Companies Act, 2013. Therefore, the Transferor Company No. 02, has violated the provisions of section 137(1)) of the companies act, 2013.

Reply by the Petitioners: The Deponent duly authorized by the Petitioners hereby declare that the Petitioner Company namely - Embark Vanijya Private Limited (Transferor Company No. 02) has filed E form AOC 4-CFS for the FY 2021-22 with the

MCA portal as required under the provisions of Section 137(1) of the Companies Act, 2013. The challan of the said E form AOC 4-CFS for the FY 2021-22 is attached herewith marked as Annexure- A.

Observations regarding M/s Glossy Vanijya Private Limited (Transferor Company No. 03): The transferor company no. 3 has an active charge (Corporate Guarantee) of an amount of Rs. 8,00,00,000 as per MCA Master data.

Reply by the Petitioners: Refer to reply to Para 2(c) of the Observation of Regional Director below

Observations regarding M/s Hemingway Apartments Private Limited (Transferor Company No. 04):

1. The transferor company no. 4 has an active charge (Corporate Guarantee in favour of Sagar Tubes & STR) of amount of Rs. 8,00,00,000 as per MCA Master data.

Reply by the Petitioners: Refer to reply to Para 2(c) of the Observation of Regional Director below.

2. As per Section 90(4) of the Companies Act, 2013-Every company shall file return of significant beneficial owners of the company and changes therein with the Registrar containing names, addresses and other details as may be prescribed within such time, in such form (E- form- BEN-2) and manner as may be prescribed. That the subject company having 2 shareholders namely M/s Blueberry Tradecom Pvt Ltd and M/s Embark Vanijya Pvt Ltd, holding 49.84% shares each respectively in the subject company, does not file E-form BEN-2 as require under the provisions of Companies Act, 2013. Therefore, the Transferor Company No. 04, has violated the provisions of Section 90(4) of the Companies Act, 2013.

Reply by the Petitioners: The Deponent duly authorized by the Petitioners hereby undertakes that the Petitioner Company namely - Hemingway Apartments Private Limited (Transferor Company No. 04) will file E form BEN 2 by paying the requisite fees prior to the sanction of the Scheme.

Observations regarding M/s Jaldham Vintrade Private Limited Transferor Company No. 05: The Transferor company no. 05 has made Non-Current Investments for an amount of Rs. 4,77,500/ in the equity instruments of the M/s Glossy Vanijya Private Ltd which is its related parties and has not earned any dividend nor any income out of such investments.

Reply by the Petitioners: The Deponent has to say that the observation are informative in nature drawn from the financial statement, hence no reply is offered.

Observations regarding M/s Sidhidata Marketing Private Limited transferor Company No. 06):

1. As per Section 137(1) of the Companies Act, 2013 A copy of the financial statements, including consolidated financial statement, if any, along with all the documents which are required to be or attached to such financial statements under this Act, duly adopted at the annual general meeting of the company, shall be filed with the annual general meeting in such manner, with such fees or additional fees as may be prescribed. That the subject company having an associate company namely M/s Glossy Vanijya Pvt Ltd, does not file E-form AOC 4-CFS for the FY 2021-22 with the MCA portal as required under the provisions of Section 137(1) of the Companies Act, 2013. Therefore, the Transferor Company No. 06, has violated the provisions of Section 137(1)) of the Companies Act, 2013.

Reply by the Petitioners: The Deponent duly authorized by the Petitioners hereby confirms that the Transferor Company No 6 undertakes to file E FORM AOC 4 – CFS for the FY 2021-2022 prior to the filing of INC – 28.

2. The Transferor company no. 06 has made Non-Current Investments for an amount of Rs. 4.77,500 in the equity instruments of the M/s Glossy Vanijya Pvt Ltd which is its related parties and has not earned any dividend nor any income out of such investments.

Reply by the Petitioners: The Deponent has to say that the observation are informative in nature drawn from the financial statement, Hence, no reply is offered.

Observations regarding M/s Sagar Roofings Private Limited (Transferee Company): As per Section 90(4) of the Companies Act, 2013-Every company shall file return of significant beneficial owners of the company and changes therein with the Registrar containing names, addresses and other details as may be prescribed within such time, in such form (E- form BEN-2) and manner as may be prescribed. That the subject company having a shareholder namely M/s. Hemingway Apartments Pvt Ltd, holding 28.03% shares respectively in the subject company, does not file E-form BEN-2 as require under the provisions of Companies Act, 2013. Therefore, the Transferor Company No. 01 has violated the provisions of Section 90(4) of the Companies Act, 2013.

Reply by the Petitioners: The Deponent duly authorized by the Petitioners hereby undertakes that the Petitioner Company namely – Sagar Roofings Private Limited (Transferee Company) will file E form BEN 2 by paying the requisite fees prior to the sanction of the Scheme.

PARA 2 (B): In the MOAs of Blueberry Trade com Private Limited, Embark Vanijya Private Limited, Glossy Vanijya Private Limited, Hemingway Apartments Private

Limited, Jaldham Vintrade Private Limited, Sidhidata Marketing Private Limited, which is submitted with the petition, the registered office clause of the company is stated to have been situated in the State of West Bengal.

Reply to Para 2(B): The Deponent here confirms that the Petitioner Transferor Companies namely : Blueberry Trade com Private Limited, Embark Vanijya Private Limited, Glossy Vanijya Private Limited, Hemingway Apartments Private Limited, Jaldham Vintrade Private Limited, Sidhidata Marketing Private Limited have duly rectified the Clause II of the Memorandum by replacing the word " ASSAM " in the place of "WEST BANGAL ". Copy of the relevant pages of the Memorandum of Assocation of the Transferor Companies are all collectively annexed and marked – ANNEXURE – B.

PARA 2 (C): Glossy Vanijya Private Limited (Transferor Company No. 3) is having open charge of Rs 8,00,00,000/- *vide* charge ID 100308503. NCLT's order dated 28.07.2022 states that *"The meetings of the Secured Creditors of the Transferor Companies are dispensed with as there are NIL Secured Creditors".* Hemingway Apartments Private Limited (Transferor Company No. 4) is having open charge of Rs 8,00,00,000/- *vide* charge ID 100311394. However, NCLT's order dated 28.07.2022 states that *"The meetings of the Secured Creditors of the Transferor Companies are dispensed with as there are NIL Secured Creditors."*

The company may clarify this Bench regarding above said statement. The charge of the above said transferor companies are showing open, which is to be closed by them on MCA Portal before praying sanction of the scheme of amalgamation by Hon'ble NCLT. The master data of the above said companies are attached herewith and flagged.

Reply to Para 2 (C): The deponent in the first place has to say that GLOSSY VANIJYA PRIVATE LIMITED (Transferor Company No. 3) and HEMINGWAY APARTMENTS PRIVATE LIMITED (Transferor Company No. 4) both had NIL Creditors and the same has been duly certified by the statutory auditors of the Company. Both these Companies never availed any credit facilities from any Bank. GLOSSY VANIJYA PRIVATE LIMITED (Transferor Company No. 3) provided Corporate Guarantee for credit facilities availed from Bank by one of their group concern namely –Similarly HEMINGWAY APARTMENTS PRIVATE LIMITED (Transferor Company No. 4) provided Corporate Guarantee for credit facilities availed from Bank by one of their group concern namely - The Bank as a collateral security had taken Corporate Guarantee from the said Transferor Companies. The deponent duly authorized hereby confirms that the said TRANSFEROR COMPANIES UNDERTAKES that it shall have the said Charge vacated prior to filing of Form INC – 28.

PARA 2 (D): That the transferee company *vide* its reply dated 18.01.2023 stated that "Clause (ii) of Part B MOA of Hemingway Apartments Private Limited enables clause of amalgamation'. Clause (ii) of Part B of MOA of the said company states "To acquire or undertake all or any part of the business of Individual, firm or company possessed of assets, goodwill and privileges for the purpose of the company or any business in which the company is authorized to carry on and to pay for any business assets or rights purchase or acquire in cash, shares, debentures or otherwise as may be deemed expedient for the company."

The enabling clause of amalgamation in the MOA of Hemmingway Apartments Private Limited is absent. Therefore, the company may clarify the Hon'ble bench about the enabling clause of amalgamation in the MOA of the Hemingway Apartments Private Limited.

Reply to Para 2 (D): That the Deponent has to say that Clause (ii) of Part B of MOA of HEMMINGWAY APARTMENTS PRIVATE LIMITED – TRANSFEROR COMPANY NO 4 is sufficient. A business can be acquired by many means and amalgamation is one such process. A reading of the said clause: *"To acquire or undertake all or any part of the business of Individual, firm or company possessed of assets, goodwill and privileges for the purpose of the company or any business in which the company is authorized to carry on and to pay for any business assets or rights purchase or acquire in cash, shares, debentures or otherwise as may be deemed expedient for the company."*

Hence, the said Clause can be taken as the clause authorizing the amalgamation although the said clause is not detailed and elaborated in the manner as is generally found.

PARA 2 (E) : That Para 12 of the scheme states that "Accordingly, in terms of this Scheme, the authorized share capital of the transferee company shall stand enhanced to Rs. 5,90,50,000/- (Rupees Five Crore Ninety Lakh Fifty Thousand Only) divided into 59,05,000 equity shares of Rs. 10/- each. The capital clause being clause V of memorandum of association shall on the effective date stand substituted to read as follows:

"The Authorized share capital of the company is Rs. 5,90,50,000/- (Rupees five crore ninety lakh fifty thousand only) divided into 59,05,000 equity shares of Rs. 10/- each with power to increase or reduce the same in accordance with the provisions of the companies Act, 1956 and to classify or reclassify the share capital"

The present prevailing Act is the Companies Act, 2013. Hence, the power to increase or reduce the 'Authorized share capital' shall be in accordance with the provisions of the Companies Act, 2013.

Reply to Para 2 (E): That the Deponent duly authorized by the Petitioner Companies hereby confirms that the Petitioner TRANSFEREE COMPANY shall ensure that the said Clause V of the Memorandum of Association will read as follows:

"*The Authorized share capital of the company is Rs. 5,90,50,000/- (Rupees Five Crore Ninety Lakh Fifty Thousand Only) divided into 59,05,000 equity shares of Rs. 10/- each with power to increase or reduce the same in accordance with the provisions of the Companies Act, 2013 and to classify or reclassify the share capital"*

PARA 2 (F): That the transferee Company namely Sagar Roofing Pvt. Ltd. has not submitted, with this office, the copy of the minutes (with attendance sheet, details of votes cast) of the meetings of the secured Creditors of the transferee company which ought to have been held on 19.09.2022.

Reply to Para 2 (F): Copy of the report filed by the Chairperson on the meeting of the Secured Creditors convened and held on 19.09.2022 as per the directives of the National Company Law Tribunal, Guwahati Bench is annexed marked as ANNEXURE – C.

PARA 2 (G): That the Transferee company should undertake to comply with the provisions of section 232(3)(i) of the Companies Act, 2013 through appropriate affirmation in respect of fees payable by Transferee Company for increase of share capital on account of merger of transfer of companies.

Reply to Para 2 (G): The Transferee Company undertakes that it shall comply with the provisions of Sec 232(3)(i) of the Companies Act, 2013 in regard to adjustment of fees upon clubbing of Authorized Share Capital(s) of the Transferor Company (ies) with the Authorized Share Capital of the Transferee Company in post-amalgamation and shall file a detailed statement thereof with the Registrar of Companies at the time of filing of INC – 28.

PARA 2 (H): In compliance of Accounting Standard-14 or IND-AS 103, as may be applicable, the transferee company shall pass such accounting entries which are necessary in connection with the scheme to comply with other applicable Accounting Standards such as AS-5 or IND AS-8 etc.

Reply to Para 2 (H): The Transferee Company shall record and pass necessary accounting entries as required in terms of Accounting Standard AS -14 and shall also ensure compliance of other applicable Accounting Standard to it.

PARA 2 (I): The Tribunal may kindly direct the Petitioner Companies to file an affidavit to the extent that the Scheme enclosed to the Company Application and Company Petition are one and same and there is no discrepancy, or no change is made.

Reply to Para 2 (I): The Petitioner Companies hereby affirms that the Scheme enclosed to the Company Application and Company Petition are one and same and there is no discrepancy or no change is made.

PARA 2 (J): The Petitioner Companies under provisions of section 230(5) of the Companies Act 2013 have to serve notices to concerned authorities which are likely to be affected by the Amalgamation or arrangement. Further, the approval of the scheme by the Hon'ble Tribunal may not deter such authorities to deal with any of the issues arising after giving effect to the scheme. The decision of such authorities shall be binding on the petitioner companies concerned.

Reply to Para 2 (J): The Petitioners have already served notice upon the Regulatory Authorities as directed by the Tribunal. Further the Deponent hereby agrees that even after the sanction of the Scheme by the Hon'ble Tribunal will not deter any such authorities from passing orders which may arise after giving effect to the Scheme and such order passed shall be binding on the concerned Petitioner Companies.

10. The Official Liquidator, Guwahati has made its representation dated 03.05.2023 and has no adverse observations, to the extent of proposed Scheme of Arrangement/ Amalgamation within the relevant provisions of the Companies Act, 2013.

11. The Income Tax Department *vide* its letter No. Amal- Demer/ ACIT / Cir2/GHY/2023-24/ dated 18.05.2023 have conveyed that the department has No Objection against the Scheme of Amalgamation.

12. *Vide* order dated 20.10.2023, the bench sought certain clarifications from the Petitioners in regard to the above observations made by RD, NER. During the hearing on 20.10.2023, the Ld. Authorized Representative FCA, Mr. N. Gurumurthy submitted that observations of RD, NER in respect of filing of E-form BEN 2 and AOC4- CFS and subsequent payment of fees has already been complied with and undertook to file the required affidavit within one week's time. In pursuance of the order dated 20.10.2023, the Petitioners have filed their affidavit dated 01.11.2023 annexing the copy of challans evidencing filing of E-form BEN 2 and AOC4- CFS for the respective Petitioner Companies on 03.11.2023.

13. Heard submissions made by the Ld. Counsel appearing for the Petitioners, the Regional Director, NER, Ministry of Corporate Affairs. Upon perusing the records and documents in the instant proceedings and considering the submissions, we allow the petition and make the following orders:

    13.1 The Scheme of Amalgamation mentioned in this Petition being Annexure "A" hereto be sanctioned by this Tribunal to be binding with effect from 1st day of April, 2021 on **Blueberry Tradecom Private Limited, Embark Vanijya Private Limited, Glossy Vanijya Private Limited, Hemingway Apartments Private Limited, Jaldham Vintrade Private Limited and Sidhidata Marketing Private**

Limited with **Sagar Roofings Private Limited** and their shareholders and all concerned;

13.2 All the property, rights and powers of the Transferor Companies, including those described in the Schedule of Assets herein, be transferred from the said Appointed Date, without further act or deed, to the Transferee Company and, accordingly, the same shall pursuant to Section 232(4) of the Companies Act, 2013, be transferred to and vest in the Transferee Company for all the estate and interest of the Transferor Companies therein but subject nevertheless to all charges now affecting the same, as provided in the Scheme;

13.3 All the debts, liabilities, duties and obligations of the Transferor Companies be transferred from the said Appointed Date, without further act or deed to the Transferee Company and, accordingly, the same shall pursuant to Section 232(4) of the Companies Act, 2013, be transferred to and become the debts, liabilities, duties and obligations of the Transferee Company;

13.4 All proceedings and/or suits and/or appeals now pending by or against the Transferor Companies be continued by or against the Transferee Company, as provided in the Scheme;

13.5 The Transferee Company do without further application issue and allot to the shareholders of the Transferor Companies, the shares in the Transferee Company to which they are entitled in terms of the Scheme;

13.6 All proceedings and/or suits and/ or appeals now pending by or against the Transferor Companies shall be continued by or against the Transferee Company; however, if any suit, writ petition, investigation appeal, criminal or other proceedings of whatsoever nature is pending against the petitioner Companies or entities associated with petitioner companies, their directors, shareholders, employees etc., the same shall not abate, be discontinued or be in any way

prejudicially affected by reason of the transfer of business of the Transferor Companies or because of anything contained in the scheme, but the proceeding shall continue, prosecuted and enforced by or against the Transferee Company/Transferor Company entities etc. in the same manner and to the same extent as it would or might have been continued, prosecuted and enforced by or against the Transferor Companies and their associated entities, directors, shareholders, employees etc. as if the Scheme had not been made.

13.7 All the employees of the Transferor Companies in Service, if any, on the date immediately preceding the date on which the scheme takes effect, i.e., the effective date shall become the employees of the Transferee Company on such date without any break or interruption in service and upon terms and conditions not less favorable than those subsisting in concerned Transferor Company on the said date;

13.8 Leave is granted to the Petitioner(s) to file the Schedule of Assets of the Transferor Company in the form as prescribed in the Schedule to Form No. CAA7 of the Companies (Compromises, Arrangements and Amalgamations) Rules, 2016 within three weeks from the date of receiving a copy of this order;

13.9 The Transferee Company shall each within thirty days of the date of the receipt of this order, cause a certified copy thereof to be delivered to the Registrar of Companies for registration and on such certified copies being so delivered, the Transferor Companies shall be dissolved with effect from the date or last of the dates of filing of the certified copies of the order, as aforesaid Effective Date and the Registrar of Companies shall place all documents relating to the Transferor Company and registered with him on the file kept by him in relation to the Transferee Company and the files relating to the said companies shall be consolidated accordingly.

13.10 The Transferor Companies shall be dissolved without winding up from the date of filing of the certified copy of this order with the Registrar of Companies, Guwahati and the Registrar of Companies shall place all documents relating to the Transferor Companies and registered with him on the file kept by him in relation to the Transferee Company and the files of the said Transferee Company and the Transferor Companies shall be consolidated accordingly;

13.11 While Approving the Scheme, we make clear that this order should not be construed as an order in any way granting exemption from payment of Stamp Duty, taxes or any other charges, if any, and payment in accordance with law.

14. The legal fees and expenses of the office of the Official Liquidator are quantified at Rs. 25,000.00 (Rupees Twenty Five Thousand only) in respect of the Transferor Company. The said fees to the Official Liquidator shall be paid by the Petitioner/Transferee Company within four weeks from the date of issuance of certified copy of the Order by the Tribunal.

15. The legal fees and expenses of the office of the Regional Director are quantified at Rs. 50,000.00 (Rupees Fifty Thousand only) in respect of the Petitioner Companies. The said fees to the Regional Director shall be paid by the Transferee Company within four weeks from the date of issuance of certified copy of the Order by the Tribunal.

16. In the event of the petitioners supply legible computerized print out of the scheme and schedule of assets in acceptable form to the department, the department will append such computerized print-out, upon verification to the certified copy of the order without insisting on a hand-written copy thereof.

17. Company Petition (CAA) No.14/CB/2022 is disposed of accordingly.

18. The Registry is directed to send e-mail copies of the order forthwith to all the parties and their Ld. Counsel for information and for taking necessary steps.

19. Certified Copy of this order may be issued, if applied for, upon compliance of all requisite formalities.

20. File be consigned to records.

Sd/-
Satya Ranjan Prasad
Member (Technical)

Sd/-
H.V. Subba Rao
Member (Judicial)

Signed this on 30th day of November 2023